

**JUSTIFICATION AND APPROVAL (J&A)
FOR OTHER THAN FULL AND OPEN COMPETITION**

1. Agency/Contracting Activity: Department of Veterans Affairs, VISN 01, Providence VAMC.

2. Description of Action:

Nature: ☒ New Requirement ☐ Follow-on Requirement
☐ Mod to Existing Purchase Order/Contract Number _____

Pricing: ☒ Firm-Fixed Price ☐ Time & Materials ☐ Cost

This justification pertains to a portion of the overall acquisition. Specifically, the brand-name equipment outlined in section three (3) of this document.

3. Description of Services or Supplies:

The total estimated value of the proposed action is \$ 85,905.00

Unit Name: C-Cure 9000

Unit Quantity: 1

Estimated Price Per Unit (to include labor): \$85,905.00

4. Authority: The following authorities are for actions other than simplified acquisition.

☒ FAR 6.103-1: Only one responsible source and no other supplies or services will satisfy agency requirements, 41 U.S.C. § 3304(a)(1).

☐ FAR 6.103-2: Unusual and compelling urgency, 41 U.S.C. § 3304(a)(2).

☐ FAR 6.103-3: Industrial mobilization, engineering, development, or research capability; or expert services, 41 U.S.C. § 3304(a)(3).

☐ FAR 6.103-4: International agreement, 41 U.S.C. § 3304(a)(4).

☐ FAR 6.103-5: Authorized or required by statute, 41 U.S.C. § 3304(a)(5).

☐ FAR 6.103-6: National security, 41 U.S.C. § 3304(a)(6).

☐ FAR 6.103-7: Public interest, 41 U.S.C. § 3304(a)(7).

5. Reasons for Authority Cited:

Existing PACS system, Pegasus, is being upgraded to the next generation program, CCure. Pegasus is a proprietary system owned by Johnson Controls, Inc (JCI). To include all the existing hardware that is to be reused for the upgrade. Due to the proprietary nature of the existing hardware and associated new hardware/software involved with the upgrade, JCI is the only available source for this portion of the overall acquisition.

6. Actions to Increase Competition:

Procuring a different system, rather than upgrading the existing system, would incur substantial costs that would ultimately outweigh any positive gains from competing systems with more competition available. As such, though no immediate actions have been taken to increase competition regarding the C-Cure 9000, the posting of this justification will yield two results that will assist in increasing competition overall. Firstly, the public posting of this document will alert interested parties of the proprietary nature of this item and promote the idea of them becoming authorized distributors/associates for JCI. Secondly, this public posting will ensure all offerors who respond to this solicitation will be utilizing the same C-Cure 9000 VIA JCI. With the vase price of this item, presumably being the same for each offeror, the competition will reside in each offeror's overhead and profit margins. Thus, maintaining competition for the overall acquisition.

7. Market Research: N/A

8. Procurement History:

Previous Purchase Order(s) or Contract(s): ☐ Yes ☒ No

If "Yes", for each purchase order or contract provide:

Purchase order or contract number: _____

Was action competed? ☐ Yes ☐ No

If action was not competed, state the cited authority, summarize rationale, and describe the actions that were supposed to be taken to increase competition and the results thereof:

9. Additional Information to support the justification. JCI technicians are the only ones certified to install, configure and program system components. They also have physical access to proprietary equipment and application software utility programs. Therefore, the contractor receiving the awardee would need to hire Johnson Control Technicians or have the equipment installed under the direction of this company.

10. Technical / Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Submitted By: Robert Palmer
Position Title: Healthcare Engineer
Email address: Robert.Palmer4@va.gov

Signature: **ROBERT PALMER**
 Digitally signed by ROBERT PALMER
Date: 2026.04.01 09:30:00 -04'00'

Date:

11. Approval: Additional market research was conducted by the contract specialist. This additional research was to discover if there were any certified/authorized third-party entities that could provide equipment/services for the system in question. None were discovered.

I hereby certify that this justification is accurate and complete to the best of my knowledge and belief. Based on the foregoing, I approve this sole source justification subject to availability of funds, and provided that the services and supplies herein described have otherwise been authorized for acquisition.

Ronald Fantasia
Contracting Officer

Date